

This execution petition is filed by the Decree Holder to enforce the decree passed in O.S.No.5088/2010 as per the Judgment dated 17/6/2015 and the decree dated 17/6/2015.

As per the said judgment and decree, the Judgment Debtor is directed to execute the sale deed in favour of the plaintiffs in respect of suit schedule property by receiving balance sale consideration of Rs.50,000/- and put the

Ex. 264/2023

Decree holder / plaintiffs in possession of the same. If the Judgment Debtor / defendant failed to execute the sale deed, the decree holder / plaintiffs can get the sale deed through court by depositing the balance consideration of Rs.50,000/- in the court and take possession of the suit schedule property.

As per the petition averment, the Judgment Debtor has challenged the aforesaid Judgment before Hon'ble High Court of Karnataka in RFA No.1160/2015 and there is no stay order granted in the said RFA by the Hon'ble High Court of Karnataka, inspite of that the Judgment Debtor has not executed the sale deed. Hence this execution petition is filed by the Decree Holder. As the Judgment Debtor failed to execute the sale deed, it is just and necessary to appoint the Court Commissioner to execute the sale deed in respect of the decreed property. Hence the following:

ORDERS

The Senior Sheristadar of this court namely Smt.Vijaya Dasarahalli has been appointed as a Court Commissioner to execute the sale deed in favour of Decree Holder through SPA holder of Decree Holder.

The Commissioner's fee is tentatively fixed at Rs.5,000/-.

Commissioner Report by 18/11/2023.

(PADMA PRASAD)
XVIII Additional City Civil Judge,
Bengaluru.

Ex. 264/2023